Pine Valley Special Service District Meeting (PVSSD)

Minutes of the Meeting held On September 4, 2013

Attending Members: Mary Esther Putnam (Chair); Dall Winn; John Nichols; Spence Beckstrom

Also Present: Gerald Schiefer (Fire Chief); George Cropper (Treasurer); Beverly Udell (Secretary)

Absent: Jeff Gardner

Guests: Gene Phillips; Ray Lindblom; Sharon Northington; Ford Northington; Violet Esparza; Fermin Esparza; Delia Nordbruch; Herman Nordbruch; Kirk Smith; Ed Anderson; Guin Winn; Rob Tersigni (Sheriff's Office); Jeff Gardner (Brandin' Iron)

General Business:

Mary Esther called meeting to order at 6:03 p.m. Welcomed residents. The Pledge of Allegiance was said.

Minutes: Minutes for the meetings of August 7, 2013, were read by the Board members. Dall motioned to approve the Minutes with one typo correction. Spence seconded that motion, and all else were in favor.

Building Permits: Rod Orton is going to enlarge a shed on his property. As of 8-15-11, an update to the PVSSD Impact Fee Schedule, it states that there will be a .50 cent a foot charge for remodels. George brought in a copy of the official resolution which stated the same thing. The specific wording is "for additions and outbuildings." George said that a question remains about removal of an existing building and then adding another building back in its place. Someone asked about County permits, and the answer was that everything these days needs a permit.

Kirk Smith: Kirk addressed the Board and shared how in the August meeting of the PVLAD, a topic came up about adding a couple flashing speed limit signs to try to curb some of the speeding being done in our valley. The lighted signs for the cows has certainly helped to remind people of cows on the roads. There is also now a flashing deer sign on Highway 18 that everyone agreed was a good addition. Mary Esther brought up the possibility of getting a flashing sign on the road coming out of Central which would alert to snow on the road. Both Kirk and Rob said that the main excuse of people speeding in the valley when they are caught is that they did not see the speed limit sign. Sharon from the audience added that people will always try to make up an excuse to keep themselves from receiving a speeding ticket. Kirk felt that in a residential area, it should be obvious to slow down, but coming out of the campground, people just don't realize that they are immediately back in a residential setting. John put in that he did not want any more signs of any kind in the valley. Kirk felt strongly that we should at least add one more by the campground to start out with. Mary Esther then asked Kirk about the costs of adding flashing lights for a sign on speeding. George said that if approved, the funding for such signage should come from the PVLAD and not from the PVSSD.

Board Member Reports:

Dall Winn: N/A

Mary Esther:

Jeff: N/A

John: N/A

Spence: Spence said that Steve Shakespeare came to him and said that the "party committee wants something done about the cows." Spence feels that the Local District should control the animals. He feels that we should petition the County to add animal control to the PVLAD. Dall reminded everyone about the history and laws stating that property owners are responsible for "fence out". In some cases it is the actual property owners who have cut the fencing into the Forestry to BLM property so that they can get their ATVs through. Cows know

where good grass is (and water), so they are naturally drawn to the green grass of a manicured lawn. Law in the State of UT says "fence out" is the responsibility of the individual property owners. Jeff Gardner said that one of the big problems is people with 4-wheelers leave the gates open. And while it is State Law about fence out, that has also always been the rule in Pine Valley. Dall said that when he was deputy for Pine Valley 17 years ago, he was getting calls back then. He did not feel that being a cowboy was the deputie's job. Dall added that this County and most of the State are "fence out". Like it or not, that is the law. Historically in Pine Valley, there was a street herd of cows. Spence asked again about adding animal control to PVLAD. Kirk wanted it to be known that if animal control was added to PVLAD, that he did not want to be a part of it because that would bring nothing but headaches as a no-win situation. Mary Esther suggested that Spence go and speak to the County Attorney. * Spence then mentioned that the Lodge was going into foreclosure and asked if we wanted to go into the park business and purchase it.

Fire Chief Report: Gerald - See attached report. * Gerald spoke about the problem with firearms and even bow hunting. Discussion ensued about what distances of shooting were legal in town. Because PV is not an incorporated town, we have to follow County and State codes. It was suggested that Don Ipson (as part of the legislature), be contacted to help clarify. Steve said that even someone shooting on private property need to have written permission from the property owner to shoot there. Code says 600 feet from any house, dwelling or other building. * Gerald wanted it know that the deputies were doing an outstanding job.

Treasurer Report: George - See attached report. * Spence asked George about the outstanding amount still on our loan from the new bay addition. George answered that we have about $90,000 left. Spence suggested increasing the payment to get it down quicker. Mary Esther responded that right now we are paying the loan down and that we do have it at a very good interest.

Citizen Requests: Sharon said she has observed that the intersection in front of the Brandin' Iron needs some road fill so that it doesn't flood so much. Gerald said that he had already spoken to Wendell about that exact problem and he sent up Gilbert to look at it. * Fermin stated that everyone seems to forget why we all moved to Pine Valley – and that is for the Country atmosphere. We all knew Pine Valley had cows walking the streets, we all knew we had dirt roads – and that is why we live here! * Ray asked about the 'Natural Conservation' project. Mary Esther responded that she and Jeff were sitting on the letter. *Sharon said that in October they were planning on doing a dump clean-up and needed helpers. * Gerald asked Jeff about Amerigas wanting a propane gas repository at the Brandin' Iron for Jeff to be able to sell it.

Dall made motion to adjourn at 7:10.